Restoration of Eligibility Waiver

Revision Date:
06/01/2024

Background:
The restoration of eligibility waiver allows households (HHs) that have been discontinued from CalFresh for failure to provide required verification at the periodic report to have their eligibility restored in the month following termination.

Purpose:
This section details the policies for restoration of eligibility. This section is being revised due to sunset review, there are no changes in legislation.

Policy:
HHs that discontinue for failure to provide a timely or complete SAR 7 Eligibility Status Report Form, required verification, or other information at periodic report may have their benefits restored in the month following the discontinuance. The missing verifications must be submitted within the 30 days following the date of discontinuance.

If the HH provides the missing verifications needed to reestablish eligibility, a new application or interview is not required, and restoration of benefits may be processed. Benefits for the initial month of restoration will be prorated as of the date the HH provides all the required information needed to establish eligibility.

1. Good Cause Determination

Good cause must be evaluated before processing restoration. Refer to CalFresh Program Guide section 63-274 for guidance on good cause. If the HH does not meet good cause criteria, evaluate for restoration.

2. HHs Not Eligible for Restoration

The following HHs are not eligible for restoration and must reapply for CalFresh:

- HHs that did not complete their recertification.
- HHs returning to the County after moving away and being discontinued.
- Disqualified HHs, for example Intentional Program Violators (IPVs) or individuals who voluntary quit a job without good cause.

3. Certification and Semi-Annual Report (SAR) Cycle

HHs that have had their eligibility restored will keep their original certification and SAR cycle. Restored HHs are considered recipients, and therefore, should not be evaluated for expedited services.

4. Restoration Processing

When the HH submits a complete SAR 7 the month immediately after discontinuance, eligibility and allotment amount will be determined based on the information that is reported for the SAR 7 data month. When processing the SAR 7, recipient budgeting rules will apply. If the HH is determined to be ineligible, the original discontinuance will remain in effect. Changes reported at SAR 7 that did not occur or were not known to the HH in the data month, will be treated as a voluntary mid-period report.

Act only on those voluntary mid-period reports that are considered verified upon receipt (VUR) or result in an increase in benefits.

5. Decrease in Benefits at Restoration

If information provided on the SAR 7 results in a decrease in benefits from the amount previously issued, timely notice is not required to restore aid at a lower amount. Timely notice is not required to decrease benefits when restoring eligibility.

6. Erroneous Discontinuances

If during the restoration process if it is determined that a HH has been erroneously discontinued, then the discontinuance must be rescinded, and eligibility and benefits reestablished at the prior level without proration. Refer to Job Aid (JA) How to Rescind a Case for additional guidance.

7. Notices of Action (NOAs)

When restoring eligibility, the following NOAs must be sent to the HH:

- CF 388 CalFresh Notice of Restoration Approval.
- CF 389 Notice of Denial of Restoration.

References:

All County Letters (ACLs) 10-32; 12-35; 13-88; 18-96; 22-51.
All County Information Notices (ACINs) I-50-12.
JA How to Rescind a Case.

Sunset Date:

This policy will be reviewed for continuance on or by 06/30/2027.

Approval for Release:

6-27-24

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